

In the Matter of the Estate of Killen

188 Ariz. 562 (Ariz. Ct. App. Div. 1, Dep't E 1996)

PROCEDURAL HISTORY:

After Dorothy I. Killen's death, Marion McCannon (named personal representative under a February 18, 1988 will) obtained informal probate. Killen's other nephews and niece petitioned for a determination of intestacy and removal of Marion, arguing Killen lacked testamentary capacity due to mental derangement. After a bench trial, the superior court found Killen lacked testamentary capacity because her will was the product of insane delusions from a delusional paranoid disorder, withdrew the will from probate, declared intestacy, removed Marion, and appointed a successor personal representative (M&I Trust). The court denied Marion's motion for new trial. Marion appealed. The Court of Appeals affirmed.

FACTS:

Dorothy Killen was widowed and had no children. For years she suffered paranoid delusions first believing her husband was trying to poison and kill her, and later believing certain nephews and a niece (Russell, R.C., and Carolyn) were trying to harm her and steal her property. She claimed they lived in her attic, sprinkled chemicals/parasites on her, cut her, pulled her tooth, were in the Mafia, and were trying to kill her. Eight days before executing her will, Killen was evaluated by psychiatrist Dr. Vinod Patel, who diagnosed delusional paranoid disorder and noted her judgment was compromised and her delusions could interfere with decision-making. About three weeks after the will execution, Killen was hospitalized and transferred to a psychiatric unit due to paranoid behavior; another psychiatrist found persecutory delusions, poor insight, impaired judgment, and mental incapacity, recommending a guardian/conservator. On February 18, 1988, Killen executed a will prepared by attorney Frank Collins (who met her only then). Marion and his wife brought her to the attorney, but Collins met with Killen alone for 1–2 hours and the next day witnessed execution with two neighboring shop owners. The will left \$1 each to Russell, R.C., and Carolyn and made significant gifts to Marion, including money and personal property, and named Marion personal representative. At trial, two psychiatrists (Dr. Patel and Dr. Alexander Don) testified that Killen's delusions were fixed, not subject to "lucid intervals," and directly distorted her perception of the targeted relatives and materially affected her will. Marion presented a psychiatrist (Dr. Bendheim) who agreed she had paranoid delusions but opined she still had capacity because she understood she was making a will and generally knew her property and family.

ISSUE:

Whether a testator who generally knows the natural objects of her bounty and understands she is making a will nonetheless lacks testamentary capacity when insane delusions materially distort her perception of certain heirs and affect the terms of the will.

HOLDING:

Yes. The will is invalid. Killen lacked testamentary capacity because her delusional paranoid disorder produced insane delusions about certain relatives, and those delusions affected the testamentary disposition.

RULE:

Arizona law presumes testamentary capacity and favors testacy; the contestant must prove lack of capacity by a preponderance of the evidence of Testamentary capacity requires ability to know the nature and extent of property, know the natural objects of one's bounty and one's relation to them, and understand the testamentary act. Mental illness can invalidate a will if it produces hallucinations or delusions, but the will must be the product of those delusions, i.e., the delusions must influence the creation/terms of the will so the testator disposes of property differently than she otherwise would have. Even if a testator "knows" her relatives, capacity can still fail if an insane delusion distorts her understanding of those relationships and materially affects the will.

REASONING:

The Court held that a testator can appear to satisfy the basic three-part capacity test, yet still lack testamentary capacity if an insane delusion affects one of the essential components especially the ability to understand and evaluate relationships with the natural objects of her bounty. Here, the evidence supported the probate court's findings because two psychiatrists testified Killen had a psychotic delusional disorder at the relevant time and that delusions are fixed false beliefs not corrected by reason. Expert testimony linked the delusions directly to the will, Killen's belief that the targeted nephews/niece were trying to kill her and steal from her explained why they received only \$1. The delusions had no factual foundation; relatives had treated her well, and her beliefs were bizarre and unsupported. Evidence before and after execution was properly considered to infer her mental state on the execution date. The court rejected Dr. Bendheim's opinion because it treated capacity as satisfied merely by general awareness of family/property, ignoring that an insane delusion can still defeat capacity when it controls the disposition. The court also emphasized it was unnecessary to speculate whether Killen might have had some "rational dislike" for those relatives; once the evidence showed an unfounded insane delusion that affected the will, capacity failed as a matter of law.